CLIENT TERMS • PROJECTS • DELIVERY

Terms of Service

General commercial terms for website development, custom web solutions, integrations, hosting, maintenance, automation and related technical services.

Effective 15 August 2026 • Version 2.0 • South Africa

DOCUMENT AT A GLANCE

14 days	50%	Written scope
Default quotation validity	Typical starting deposit	Controls project delivery

Masana WebWorks
Where your digital vision comes to life. | info@masanawebworks.co.za | +27 61 488 4488

1. Acceptance of these terms

These Terms of Service govern the relationship between Masana WebWorks and a client who accepts a quotation, pays a deposit, instructs work to begin, or otherwise uses a service supplied under these terms.

A project-specific quotation, proposal or written agreement may add to or vary these general terms. If there is a direct conflict, the project-specific written agreement takes priority for that project.

2. Services

Masana WebWorks may provide website design and development, custom web solutions, UI/UX work, redesigns, APIs and integrations, e-commerce features, SEO and performance work, hosting and maintenance, domain or email setup support, automation and assistant-style functionality, content or digital media support, and general IT support.

All services remain subject to availability, technical feasibility and confirmation in an official quotation or written scope.

3. Quotations, deposits and payment

- Unless stated otherwise, quotations are valid for 14 days.
- A 50% deposit is normally required before work begins. Different milestone terms may be stated in the quotation.
- The balance becomes due on completion, at the agreed milestone, or before final handover as stated in the quotation.
- Payments are made by EFT or another approved method.
- Late or outstanding payments may delay delivery, suspend services or pause access to deliverables until the account is brought up to date.
- Third-party costs such as domains, hosting, premium plugins, licences, payment-provider charges or external services are excluded unless expressly included in writing.

4. Scope, revisions and change requests

The agreed scope is the work described in the accepted quotation, proposal or written project brief. Requests that materially add pages, features, integrations, content production, redesign work or other deliverables may be treated as change requests and quoted separately.

Reasonable revision rounds may be included as stated in the project quotation. Revisions refine the agreed direction; they do not automatically replace the original scope with a substantially different project.

> **Clear written scope protects both the client and Masana WebWorks. New functionality should be confirmed before additional work begins.**

5. Client responsibilities

- Provide accurate project information, content, branding, approvals and feedback on time.
- Confirm that supplied text, images, logos, data and other materials may lawfully be used.
- Provide access credentials securely where access is necessary.
- Review work and report errors or requested changes within reasonable project timelines.
- Comply with laws and third-party rules applicable to the client's own business, products, content and customers.
- Maintain appropriate copies of source business information the client is responsible for supplying.

6. Timelines, delivery and acceptance

Delivery dates are estimates unless expressly agreed as fixed deadlines. Timelines depend on scope, technical dependencies, third-party providers, client feedback and timely access to required content.

When a deliverable is submitted for review, the client should provide consolidated feedback within the period stated for the project. If the client does not respond for an extended period, the project may be paused and a restart schedule may be required.

A project is considered complete when the agreed deliverables have been supplied and material issues within the agreed scope have been addressed, subject to final payment obligations.

7. Intellectual property

Unless otherwise agreed in writing, original project work created by Masana WebWorks remains the property of Masana WebWorks until all amounts due for that work have been paid in full.

After full payment, the client receives ownership of the final custom deliverables created specifically for the project, excluding reusable tools, general know-how, pre-existing materials, third-party software, fonts, stock assets, open-source components, plugins and items governed by separate licences.

Masana WebWorks may display completed work in its portfolio and marketing materials unless the client requests otherwise in writing or confidentiality requirements prevent it.

8. Third-party services and dependencies

Projects may depend on third-party hosting, payment processors, domain registrars, email systems, APIs, plugins, platforms or cloud services. Those providers operate under their own terms, availability, pricing, privacy rules and technical limits.

Masana WebWorks is not responsible for outages, policy changes, price changes, discontinued services or faults caused solely by a third-party provider, but will provide reasonable assistance within the agreed support scope where practical.

9. Hosting, maintenance and support

Hosting and maintenance are ongoing services only where included in a quotation or maintenance plan. Unless expressly included, a website build does not create a perpetual obligation to provide free updates, hosting, backups, security monitoring or content changes.

Support work outside the agreed plan may be quoted separately. Clients remain responsible for renewing third-party services registered in their own name unless Masana WebWorks has specifically agreed to manage them.

10. Automation, assistants and AI-enabled functionality

Where a project includes automation, assistant-style features or third-party AI services, functionality may depend on external providers, data quality and changing platform behaviour. Automated or AI-generated outputs may occasionally be incomplete or inaccurate and should not be treated as professional legal, medical, financial or other regulated advice unless reviewed by an appropriately qualified professional.

The client is responsible for approving the intended use, content and customer-facing disclaimers for such functionality. Cloud AI provider fees, usage limits or data-processing terms will be addressed in the project scope where applicable.

> **The chatbot included with the current Masana WebWorks website is a local browser-based assistant. It does not require an external AI API or transmit chat messages by itself.**

11. Confidentiality and privacy

Masana WebWorks will treat non-public business information and access credentials supplied for a project as confidential and will use them only as reasonably necessary to perform the service, except where disclosure is required by law or authorised by the client.

Personal information is handled in accordance with the Masana WebWorks Privacy & Consent Notice and applicable South African data-protection requirements.

12. Cancellation, suspension and termination

A client may cancel a project in writing. Fees for work already performed, approved third-party costs and non-recoverable commitments remain payable. Deposits are applied against work performed and committed project costs; any refund, if applicable, depends on the actual project stage and accepted quotation.

Masana WebWorks may pause or terminate work for non-payment, prolonged lack of communication, abusive or unlawful instructions, material breach of these terms, or technical/legal reasons that make continued performance unreasonable.

13. Warranties and post-launch issues

Masana WebWorks aims to deliver work that materially matches the agreed scope and is tested on reasonable current devices and browsers relevant to the project. No website, hosting service, third-party platform or software system can be guaranteed to operate without interruption or error indefinitely.

Issues caused by later third-party changes, client modifications, unsupported software, compromised credentials, hosting changes or work performed by others may fall outside the original project warranty and may require separate support.

14. Limitation of liability

To the extent permitted by law, Masana WebWorks will not be liable for indirect, incidental or consequential loss arising from matters outside its reasonable control, including third-party outages, client-supplied content, compromised client credentials, lost profits or business interruption.

Nothing in these terms is intended to exclude or limit liability where such exclusion or limitation is prohibited by applicable law.

15. General terms, governing law and contact

These terms are governed by the laws of the Republic of South Africa. If a dispute arises, the parties should first attempt in good faith to resolve it through direct discussion before pursuing formal remedies.

If any provision is found unenforceable, the remaining provisions continue to apply. Failure to enforce a term immediately does not permanently waive that term.

Masana WebWorks may update these general terms for future work. The version accepted for an existing project continues to apply unless the parties agree otherwise in writing.

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CLIENT ACCEPTANCE

Project sign-off

Use this page where a signed acknowledgement is required in addition to acceptance of the project quotation or other written instruction to proceed.

PROJECT / SERVICE	QUOTATION REFERENCE
_____	_____
CLIENT / COMPANY	**REPRESENTATIVE**
_____	_____

By signing below or accepting an official quotation that incorporates these Terms of Service, the client confirms that these terms have been read and accepted, subject to any project-specific written terms.

Client / Data Subject Name

Company / Organisation

Signature

Date

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